

HOUSE No. 1612

The Commonwealth of Massachusetts

PRESENTED BY:

Tackey Chan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to independent prepaid legal services plans.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>1/13/2025</i>
<i>Carmin Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/18/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/10/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>7/18/2025</i>

HOUSE No. 1612

By Representative Chan of Quincy, a petition (accompanied by bill, House, No. 1612) of Tackey Chan, Carmine Lawrence Gentile and Bradley H. Jones, Jr., relative to independent prepaid legal services plans. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to independent prepaid legal services plans.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 176H of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Covered legal services,”
3 the following definition: -

4 "Independent prepaid legal services plan", means a non-indemnity plan, regardless of the
5 benefits, where legal services are available to members, or their dependents, through an
6 organization that contracts directly with independent attorneys for the provision of the legal
7 services and the organization pays the independent attorney via a capitated arrangement and the
8 independent attorney receives no additional payment or reimbursement from the organization for
9 specified legal services or specified legal expenses.

10 SECTION 2. Said chapter shall be further amended by inserting after section 19 the
11 following section: -

12 Section 20. Exemptions

13 For purposes of this chapter an independent prepaid legal services plan shall not be
14 considered an insured legal services plan or a membership legal services plan and any person,
15 group of persons, organization or entity establishing, operating, offering or selling an
16 independent prepaid legal services plan shall be exempt from the requirements imposed by this
17 chapter.